

M/s Raghav Cold Storage v. Dakshinanchal Vidhyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · WRIT - C No. 18056 of 2022 · **Writ disposed; petitioner relegated to clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking a revised bill, six-instalment facility and permanent disconnection certificate was disposed of without opinion on merits. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 against the impugned demand, to be decided in four weeks after hearing, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

M/s Raghav Cold Storage, a consumer of Dakshinanchal Vidhyut Vitran Nigam Ltd., filed a writ petition seeking a mandamus directing the distribution company to consider its representation dated 31 May 2022, issue a revised bill granting a six-instalment facility for the entire dues, clear all arrears, and grant a permanent disconnection certificate. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-objection

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution company within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand/notice shall not be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Mandamus to revise the bill, grant six instalments and issue a permanent disconnection certificate was refused on the writ; the consumer was remitted to a Para 6.5 objection against the impugned demand. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The Court treated the impugned demand as a matter for a time-bound Para 6.5 objection before the distribution company, not for merits adjudication on the writ. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND, REVISED BILL, SIX-INSTALMENT FACILITY AND PERMANENT DISCONNECTION CERTIFICATE

The Court expressly declined to opine on the merits of the petitioner's case. ¶ 4